

2. 9:00 AM CASE NUMBER: C22-00932
CASE NAME: CARMELLA ESPANA VS. ED EGZON
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT
FILED BY: THE PERMANENTE MEDICAL GROUP, INC. A CALIFORNIA CORPORATION
TENTATIVE RULING:

Before the Court is a demurrer by defendant The Permanente Medical Group, Inc. to plaintiff's third amended complaint. For the reasons set forth, the demurrers to the first through fourth causes of action are **sustained, with leave to amend.**

Background

Plaintiff Carmella Ashley Espana filed her complaint initiating this action on May 5, 2022. The complaint named one defendant, Dr. Jonathan Rosenson, and no Doe defendants. The attachment to the complaint described an "Incident" she alleges occurred on May 5, 2021, when, in advance of a scheduled spinal injection procedure Plaintiff was to undergo at Kaiser's facility in Richmond, a male nurse at Kaiser allegedly forcefully lifted her leg from the floor onto an exam table. (Compl. Incident att.) She alleged that the nurse's conduct caused her to suffer a painful leg injury, and that she was taken to Kaiser's emergency room where Dr. Rosenson, an emergency room physician, refused to give her a CT scan or perform an MRI on her leg to determine the extent of the muscle tear. (Compl. Incident att.) She alleged she was improperly discharged with crutches and without treatment and asserted two causes of action for general negligence and medical negligence. (Compl. ¶ 10.b. and f. and Incident att.)

Plaintiff filed a first amended complaint on November 21, 2022, which identified as defendants Dr. Rosenson, Ed Egzon, "Kaiser Permanente Hospital Richmond," and Does 1 to 3. On October 20, 2023, Plaintiff filed a second amended complaint which named as defendants Dr. Rosenson, Ed Egzon, "Kaiser Permanente Northern California (Hospital Richmond)," and Does 1 to 3.

Plaintiff engaged counsel in May 2025. Through counsel, she entered into a stipulation approved by the Court allowing her to file her operative third amended complaint ("3AC"). (7/8/2025 Stip. and Order.) The 3AC was filed on August 21, 2025 and names as defendants Ed Egzon, "The Permanente Medical Group, Inc." ("TPMG"), and Does 2-30 as defendants. Plaintiff alleges that she substituted TPMG as "Doe 1." (3AC ¶ 2.) The 3AC alleges causes of action for medical battery (1st C/A), medical malpractice (2nd C/A), negligent infliction of emotional distress ("NIED") by breaching the duty of care owed to Plaintiff (3AC ¶¶ 17, 18, 3rd C/A), and lack of informed consent (4th C/A).

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (See also Code Civ.

Proc. § 452.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on this ground, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is time-barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.)

Analysis

TPMG contends that all causes of action in the 3AC are subject to a one-year statute of limitations under Code of Civil Procedure section 340.5 and that all claims against it are time-barred. TPMG argues that Plaintiff's designation of it as "Doe 1" in the 3AC does not make the claim against it timely, as Plaintiff's original complaint, filed exactly one year after the alleged incident, did not name any Doe defendants and only asserted a claim against Dr. Rosenson for his alleged failure to provide a CT scan or MRI in the emergency room. TPMG also generally demurs to the first and third causes of action on the ground that neither alleges facts sufficient to state a cause of action for the claim stated.

A. Medical Battery (1st C/A)

In *So v. Shin* (2013) 212 Cal.App.4th 652, the Court explained the tort of medical battery: "The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching. [Citations omitted.] [¶] A medical battery occurs where 'a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained' [Citations omitted.] In contrast, 'when the patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation the action should be pleaded in negligence.' [Citation omitted.]" (*Id.* at 669 [emphasis added].)

1. Whether the Facts Alleged State A Claim for Medical Battery

Plaintiff alleges that she "was attempting to get onto a clinic bed prior to an epidural injection when Defendant Doe 1 used excessive force constituting a battery" causing her tendon to tear and a muscle injury, that "Defendants" used excessive force, that she did not "authorize or agree to the procedure," and that Defendants "used excessive force without her consent." (3AC ¶¶ 5, 6, 9, 10.) A fair construction of these allegations is that Plaintiff did not consent to the use of "excessive force" to move her onto the bed for the procedure, but that Plaintiff consented to the general treatment, i.e., the epidural which necessarily involved Plaintiff being placed onto a bed or exam table so that the epidural injection could be performed. While Plaintiff alleges she did not consent "to the procedure," the "procedure" described in the preceding paragraph is Doe 1 "us[ing] excessive force constituting a battery" which injured her leg. (3AC ¶¶ 5, 6.) This interpretation is consistent with Plaintiff's subsequent allegations that Defendants "negligently and carelessly severely injured Plaintiff's left leg

while being placed on an exam table." (3AC ¶ 13.)

Plaintiff's opposition does not address *Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal. App. 4th 336 cited by TPMG, in which the Court held that the plaintiff's claims for battery and intentional infliction of emotional distress against an anesthesiologist were for professional negligence and subject to the one-year statute of limitations of Code of Civil Procedure section 340.5 despite his characterization of the claims as intentional torts. In complaints filed in an earlier action and in the complaint in the action before the Court of Appeal, the plaintiff alleged his anesthesiologist injured him "by forcefully grabbing and twisting his arm while conducting a preoperative checkup, and by prying open Larson's mouth and violently punching, lifting, and pushing Larson's face as he put on the mask to administer anesthesia. These allegations challenge the manner in which Shuman rendered the professional health care services he was hired to perform; they do not allege intentional torts committed for an ulterior purpose. [¶] . . . Larson's claims are based on how Shuman performed his preoperative checkup and how he administered anesthesia. Larson alleges Shuman performed some of the tasks 'forcefully' and 'violently,' but those self-serving characterizations are merely attempts to avoid MICRA and the restrictions it imposes on all medical malpractice claims." (*Id.* at 351-352.)

Plaintiff arguably could be attempting to allege that she did not consent to "Doe 1" (TPMG, or presumably the nurse) touching her or assisting her at all to move her onto the bed, but those facts are not pled in the 3AC. She does not allege that TPMG, or the nurse, intended to injure her. Similar to the *Larson* case, the cause of action sounds in professional negligence for failing to meet the standard of care in using "excessive force" to move her onto the bed in preparation for the epidural injection.

2. Applicable Statute of Limitations

Actions against a health care provider based on alleged professional negligence must be commenced within the shorter of "three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury." (Code Civ. Proc. § 340.5.) Plaintiff does not dispute that the one-year statute of limitations applies to most of her causes of action, but she contends her claim for medical battery is subject to a two-year statute of limitation under Code of Civil Procedure section 335.1. (*See also Daley v. Regents of University of California* (2019) 39 Cal.App.5th 595, 602 [statute of limitations is two years for medical battery].) Plaintiff's first cause of action as pled, however, alleges professional negligence to which the one-year statute of limitations applies, which began running when Plaintiff clearly discovered the injury had occurred on May 5, 2021.

3. Effect of Naming TPMG as Doe 1 and Relation Back Doctrine

The first amended complaint filed in November 2022, more than five months after the one-year statute of limitations ran, is the first time Plaintiff named any Kaiser entity or Doe defendants. Plaintiff argues that because TPMG was named as a Doe defendant in the 3AC pursuant to a stipulation and court order, the fictitious name statute and relation back doctrine should apply to essentially make TPMG a party as if it had been named in the original complaint.

In the July 2025 stipulation, the parties agreed that Plaintiff could file her 3AC but that "Defendants reserve all rights to challenge the allegations and basis for the TAC by way of the appropriate responsive pleadings." (7/8/2025 Stip. and Order p. 2, ll. 8-9.) Code of Civil Procedure section 474

provides in pertinent part, "When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly." The statute by its terms requires the complaint to name the defendant, though by the fictitious name.

"The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed. [Citations omitted.]" (*Woo v. Superior Court* (1999) 75 Cal. App. 4th 169, 176.) Substitution of a new defendant for a "Doe" defendant named fictitiously in a cause of action in a prior complaint is an exception to the general rule, such that "[i]f the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed. [Citation omitted.]" (*Id.*) "Among the requirements for application of the section 474 relation back doctrine is that the new defendant in an amended complaint be substituted for an existing fictitious Doe defendant named in the original complaint. [Citations omitted.]" (*Id.* [emphasis added].) The earliest pleading in which Doe defendants were named was the first amended complaint, which was filed after the one-year statute of limitations of Code of Civil Procedure section 340.5 had passed.

Based on the Court's ruling that the one-year statute of limitations applies to the medical battery claim as alleged in the 3AC, any application of the relation back doctrine to the first amended complaint does not make the first cause of action timely filed against TPMG. The Court is not persuaded that either the July 2025 stipulation or Code of Civil Procedure section 474 supports applying the relation back doctrine to treat TPMG as if it were named as a defendant in the original complaint. The Court need not address TPMG's contention that Plaintiff unreasonably delayed in substituting the proper Kaiser entity (TPMG) for a Doe defendant as a result. The argument in any event is based on evidence outside the 3AC which the Court does not consider in ruling on a demurrer, except for matters subject to judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

4. Equitable Tolling

Plaintiff argues that even if her claims are subject to the one-year statute of limitations under Code of Civil Procedure section 340.5, the claims are nevertheless not time-barred based on the equitable tolling doctrine set forth in *Saint Francis Memorial Hospital v. State Department of Public Health* (2020) 9 Cal.5th 710. The Court in *St. Francis* held that the equitable tolling doctrine could apply to make a petition for writ of mandate subject to the statute of limitations of Government Code section 11523 timely. (*St. Francis, supra*, 9 Cal.5th at 719-720.) The Court held there is a rebuttable presumption that a statute setting a statute of limitations is subject to the application of the equitable tolling doctrine. (*Id.* at 720.) Three elements must be satisfied for a party to invoke the equitable tolling doctrine: "[(1) timely notice, and [(2)] lack of prejudice, to the defendant, and [(3)] reasonable and good faith conduct on the part of the plaintiff." [Citation omitted.]" (*Id.* at 724.)

Plaintiff's opposition argues why the facts and circumstances of this case support the application of the equitable tolling doctrine. The Court in ruling on the demurrer is limited to consideration of the

facts alleged in the 3AC. There are no facts alleged in the 3AC that support the application of the equitable tolling doctrine to the medical battery or any other cause of action alleged against TPMG. The Court makes no determination as to whether the additional facts described in Plaintiff's opposition would be sufficient, if alleged, to invoke the equitable tolling doctrine as to the medical battery claim, or any other cause of action alleged in the 3AC. Because the facts essential to invoke that doctrine are not alleged in the 3AC, the equitable tolling doctrine cannot make the medical battery claim, or the other causes of action of the 3AC, sufficient to overcome a demurrer based on the statute of limitations.

TPMG argues in its reply that the equitable tolling doctrine is not available as a matter of law to extend the statute of limitations of Code of Civil Procedure section 340.5, an argument Plaintiff has not had an opportunity to address. In any event, the 3AC does not allege any factual basis to apply the doctrine as pled. Until Plaintiff alleges facts in the operative pleading sufficient to invoke the application of the doctrine under the *St. Francis* decision, the Court does not need to reach that legal issue.

On these grounds, the general demurrer by TPMG to the first cause of action is **sustained, with leave to amend.**

B. Medical Malpractice and Lack of Informed Consent (2nd and 4th C/As)

Plaintiff does not dispute that the one-year statute of limitations under Code of Civil Procedure section 340.5 applies to these two causes of action. (*See, e.g., Warren v. Schechter* (1997) 57 Cal.App.4th 1189, 1201 [applying Code of Civil Procedure section 340.5 to informed consent claims]; *Larson, supra*, 230 Cal.App.4th at 345 [Code of Civil Procedure section 340.5 one-year statute of limitations applies to claim for health care provider's professional negligence].) To make these claims timely as to TPMG, Plaintiff relies on her arguments regarding the relation back doctrine for Doe defendants, the stipulation allowing her to file the 3AC, and the equitable tolling doctrine. For the same reasons set forth above in regard to the medical battery cause of action, treated as a professional negligence claim subject to Code of Civil Procedure section 340.5, Plaintiff's claims for medical malpractice and lack of informed consent against TPMG are time-barred. The first date on which Plaintiff filed a complaint naming as a defendant a Kaiser entity or Doe defendants was in November 2022, more than five months after the one-year statute of limitations had elapsed. Plaintiff has cited no authority that would make her claims against TPMG relate back to the filing of the original complaint. The 3AC also does not plead facts to support the application of the equitable tolling doctrine to make these causes of action against TPMG timely for the reasons explained above.

The general demurrers to the second and third cause of action based on the statute of limitations are **sustained, with leave to amend.**

C. NIED (3rd C/A)

"Negligent infliction of emotional distress is not an independent tort; it is merely convenient terminology descriptive of the context in which the negligence occurred." (*Long v. PKS, Inc.* (1993) 12 Cal.App.4th 1293, 1297.) (*See also Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d 583, 588.) Rather, if a negligence cause of action is otherwise established, then "[d]amages for severe emotional distress . . . are recoverable in a negligence action when they result from the breach of a duty owed the plaintiff that is assumed by the defendant or imposed on the defendant as

a matter of law, or that arises out of a relationship between the two.' [Citation omitted.]" (*Long v. PKS, Inc., supra*, 12 Cal.App.4th at 1297-1298 [quoting *Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d at 590].) (*See also Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984 [under California law, damages for emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff].)

There appears to be no dispute that the NIED claim arises out of a breach of duty in the provision of professional medical services, and that the one-year statute of limitations of Code of Civil Procedure section 340.5 applies to this cause of action. TPMG argues there is no separate cause of action for NIED under California law but does so only in the context of its argument that this cause of action is barred by the statute of limitations. Arguably, the NIED claim then merely alleges another claim for negligence with the emotional distress injury allegedly caused by TPMG's medical negligence. This cause of action against TPMG is barred by the one-year statute of limitations of Code of Civil Procedure section 340.5 for the same reasons as Plaintiff's second and third causes of action.

The demurrer to the third cause of action based on the statute of limitations is **sustained, with leave to amend**.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

3. 9:00 AM CASE NUMBER: C22-02341
CASE NAME: ALMA CANLAS VS. CSAA INSURANCE EXCHANGE, AN UNINCORPORATED ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: SU, ALIVIA
TENTATIVE RULING:

The **motion is granted as to Plaintiff Alivia Su**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

4. 9:00 AM CASE NUMBER: C22-02341
CASE NAME: ALMA CANLAS VS. CSAA INSURANCE EXCHANGE, AN UNINCORPORATED ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: ROBINSON, JOHN
TENTATIVE RULING:

The **motion is granted as to Plaintiff John Robinson**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

5. 9:00 AM CASE NUMBER: C22-02772